

Why Should I Obey the State?

[The following is the text of a lecture given to a Grade XII class in Cowichan High School, Duncan, BC, by Ian Johnston of Malaspina University-College, Nanaimo, BC, in September 2003. The text is in the public domain. For comments and questions, please contact [Ian Johnston](#).]

I'm here today to provide, as best I can in a very short time, a grand, large-scale map of some of the complex territory you will be exploring in more detail in your studies of some very important political thinkers, whose books established much of the theoretical basis for our understanding and discussions of modern politics. This task requires that I move very quickly through some complicated issues and sophisticated theories, so inevitably these remarks will be very cursory. However, if I can set up some useful signposts along the way that will help you in your more detailed explorations, then I will have succeeded in what I set out to do.

SOME PRELIMINARY OBSERVATIONS

Let's begin with a really fundamental question about what we call a state or a country—the basic political unit your studies are concerned with. What is its purpose? What is this political organization supposed to provide its citizens? Well, at the most basic level, the state has only two major functions. The first is to protect its citizens from outside interference and oppression—that is, the state has to defend its independence and freedom to govern itself (otherwise it ceases to be a state and becomes a province in someone else's empire). And the second is to establish and protect justice within the state. Justice here does not mean simply a judicial system but something much more all-encompassing—a sense of fair allocation of the resources of the state, a idea derived from the Greek idea of justice as an “arrangement,” the proper distribution of economic, cultural, educational, and judicial services carried on in the community (the words fair and proper here, as we shall see, do not necessarily mean equal).

In order to carry out these two functions, the state has at its disposal considerable power—physical power (in the form of police, judges, and soldiers), economic power, cultural power (including, most importantly, religion), and social power (especially public opinion). And so the central issue of politics—the issue that, in one way or another, almost all important political theorists are seeking to address—becomes an attempt to answer this question: What is the best way to organize the power in the

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state in order to achieve the two goals of the state, freedom and justice? To whom should we entrust the power at the state's disposal in order to achieve these goals? Who should rule, and who should obey, and how do we define, describe, and justify the relationship between them?

Any attempt to answer such questions requires a theoretical defense of the particular model being proposed, a comprehensive account which provides the citizens with an understanding of why a particular distribution of power and decision making is justified and legitimate. Such an account will then become an integral part of the way the state educates its young and persuades its citizens to comply with the arrangements. In other words, such a defence will have to provide a satisfactory and effective answer to the most basic question in political science, "Why should I obey the state?" An answer of some kind must be available to the citizens, since they have to put up all the time with state decisions which affect them and which often require them to do things they might not wish to do (like pay taxes). Unless most of them willingly obey most of the time, running the state may well become unworkable.

[Parenthetically, one might wonder just how a state would fare without such a theoretical justification, without a persuasive framework for establishing the legitimacy of the distribution of power. In such a situation, it would seem that the only way the rulers could justify the arrangement is by an appeal to force—obey or you'll be seriously hurt. While this answer is obviously part of any political system, if it is the only basis for the authority of the rulers, then in a very real way the state has no identity, no coherent sense of itself, and will last only as long as the present power arrangements hold (which is why even the most tyrannical regimes often go to great lengths, as in the case of, say, Nazi Germany or modern North Korea, to legitimize themselves with the cult of a particular leader or ideology of race or religion or sham elections].

THE OLD ORDER

All of the political thinkers you are studying are addressing this question. In fact, they largely define the various major alternatives which characterize modern political life in the West. But before turning directly to these thinkers, let me pose this question: Why is it that in the seventeenth and eighteenth centuries political theory was such a hot topic? What happened that suddenly

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prompted such energetic and long-lasting public debate about the nature of the state? Given that major intellectual movements always arise in response to some previous arrangements, usually in cases where those arrangements have become problematic, we might well want initially to explore what crisis these writers were addressing in their concerted efforts to propose new political models.

To answer this point, I need to say a few necessarily superficial remarks about what I'll call the Old Order, the political arrangements which had governed Europe for centuries and which, for reasons I'll mention in a moment, had become a problem. The Old Order was, briefly put, a political organization of the state based on inherited rank, in which society consisted of a carefully graded hierarchy of value—the king and the major aristocracy and bishops at the top and the peasants at the bottom, with various degrees in between. One's position on the scale was determined, almost without exception, by one's birth and the traditions of one's community (one's social position was not something one could choose or, in almost all cases, earn; it was something set by the position into which one was born). Movement up and down the scale was extraordinarily difficult and certainly not encouraged. The distribution of power in the state corresponded to the scale: the higher one's position, the greater one's power. And with power came responsibility for those one ruled, with the absence of power came the obligation to obey. One's position in the hierarchy determined precisely the nature of one's responsibilities and obligations.

What held this system together was a network of personal relationships among the rulers and the governed. Political life was overwhelmingly local, since the vast majority of people lived in very small and traditional agricultural communities where their families had lived for generations and where the power base (the ownership of land and the religious authority) had not changed for centuries. The theoretical basis for this arrangement was twofold—the first was an appeal to traditions, "You should obey the state because that's what we've always done around here." The second was an appeal to religion—the hierarchical structure of the state was part of the natural order ordained by God (which manifested itself in the organization of the entire universe)—who had arranged things in this way so that the wiser and better people governed the less capable: "You should obey the state because that's God's will." In such a system, justice and freedom in the state depended upon virtue in the rulers—because they

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were more virtuous than others, they knew best how to use power for the right purposes. And so, in the centuries before the challenges to the Old Order began, the central issue in a great deal of political writing was this: How do we encourage virtue in the rulers? For if we have that, then justice and freedom are more secure.

The Old Order lasted as an effective political organization for centuries and established the foundations for what we now call Western Europe. There were always inherent tensions within it, of course, particularly dynastic squabbles among the aristocracy about the legitimacy of succession (e.g., the Wars of the Roses), about control of particular territories (e.g., the Hundred Years' War), about the appropriate balance of secular and religious authority, and about particular power arrangements with the elite (clashes between kings and senior barons, for example), among other things, but there was no significant major argument about the nature of the state and the justification for it. In that sense, it was a spectacularly successful and long-lasting political model.

The challenge to the Old Order arose gradually out of at least three major conditions. The first (in no particular order) was the rising power of capitalism in the sixteenth and seventeenth centuries, which created, through trade, an increasing number of people with growing economic power but relatively little political clout. The Old Order's structure of inherited power put the ruling authority for the most part squarely in the hands of those traditional aristocratic families or institutions which owned land and derived their wealth from the land. Its very conservative traditions had no room for allocating significant power to the rising group of wealthy business people (whose activities were enormously energized by the exploration and exploitation of the Americas). This new business class began making demands for political power commensurate with its economic power—demands which the Old Order tended to resist. Hence arose a conflict that ultimately led to the English Civil War and the American War of Independence (both prompted, in large part, by what the business groups saw as taxation without satisfactory political representation).

The second factor was what seemed to be the deplorable and growing lack of politically effective virtue in the rulers, which in some places (especially in Italy and later in France) seemed incapable of promoting domestic peace and economic prosperity. The growing power of some royal families often encouraged

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them to engage in disastrous and inconclusive wars of expansion or economically wasteful attempts to celebrate the glory and power of the king, to the detriment of many citizens, particularly the poor (the architectural achievements of Louis XIV, for example, from Louisburg to Versailles, are an eloquent testimony of this tendency, to say nothing of his frequently catastrophic and economically crippling military and colonizing expeditions).

Perhaps the most decisive factor, however, was the loss of religious uniformity and the religious wars which followed (in the sixteenth and seventeenth centuries), for this put into question the very heart of the Old Order—the nature of virtue itself. Once people could no longer agree about that and were prepared to defy their rulers or kill their fellow citizens over competing definitions of virtue in the name of the one true religion, the fabric of the Old Order was ripped apart. I'm not sure if you like to jot down important dates or not, but if you do, then one you might like to commit to memory is 1648, the year the Thirty Years' War ended—a conflict in which for the first and last time, virtually all of Western Europe tore itself apart over religious questions, the various parties seeking, quite literally, to exterminate other faiths. When that war ended inconclusively, it was clear to many people that European states needed a new framework for political life. All of the writers you are studying are responding to this need.

One might include in the list another key factor in the gradual collapse of the Old Order—an astonishing explosion in the population in the eighteenth and nineteenth centuries, accompanied by a rapid population shift from small agricultural communities into huge new cities. This development (whose causes historians are still debating) destroyed the fundamental political unit of the Old Order: the small traditional community with a clear geographical identity and strongly shared communal traditions.

I don't want to suggest with this list that the transformation of the Old Order happened immediately. That was, for the most part, a slow process (although there were significant major explosions along the way, like the English Civil War, the American War of Independence, and the French Revolution). Nor do I want to claim in the remarks which follow that these political thinkers necessarily had an immediate and revolutionary impact. What makes their work so important is that they provided those people who were seeking changes in the Old

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Order with alternative models and a different vocabulary, so that reformist and revolutionary movements could establish a concerted program of action. It's important to remember here that the most important thinkers are generally those who redefine the conversation, who put new ways of thinking about old problems on the table, and who thus help to channel the energies of others in new directions. Such thinkers are not necessarily themselves revolutionary activists (although some are), nor do their theories always have an immediately revolutionary impact.

A SHORT DIGRESSION: MACHIAVELLI

Machiavelli, who is often hailed as the first modern voice in political theory, pre-dates the Reformation, of course, and so his famous book *The Prince* (written in 1513) is more an anticipation of what was to come later. He is writing in direct response to the political anarchy in Italy, long characterized by what seemed never-ending and very bloody wars between the various rival ducal and papal states.

What makes Machiavelli interesting is not any comprehensive new theory of the state (which he does not offer) but his revolutionary insistence that the traditional emphasis on virtue in the ruler is a mistake. What the ruler should concentrate on is not doing the right thing but doing whatever is effective for protecting and ensuring his own power. And that necessarily requires that the ruler abandon any notion of adhering to virtue. He should lie, torture, kill, assassinate, invade, and so on as the situation requires. What Machiavelli recommends, above all, is an intelligent practical sense of what particular actions will work best in a given situation to make the ruler's power more secure, combined with a ruthless willingness to undertake such action (such a quality Machiavelli calls *virtu*—hence the old saying about him, “There is no virtue in *virtu*”). Machiavelli argues that this is, in fact, how successful rulers have always operated, and therefore this is how the modern prince ought to proceed. In his political world, the end (protecting and increasing the prince's power) always justifies the means. In modern times, this attitude is often called *Realpolitik*.

Reactions to Machiavelli have typically fallen into one of three camps. Many (including most of his contemporaries) dismiss his proposals as morally absurd and, as often as not, politically self-defeating. Machiavelli's prescriptions, many argue, are a recipe for evil actions and for political catastrophe (a good contemporary

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example is the US-UK position on Iraq. Having, in effect, lied to justify a war they wanted to fight, the political leaders of those countries are now in a position of having to beg for help from those who refused to believe them and of having, with increasing desperation, to tell their own citizens that the enormous and continuing cost in lives and dollars is worth it. Moreover, their Machiavellian tactics may have seriously weakened the power of both leaders and, of course, diverted resources away from the war against terrorism).

Defenders of Machiavelli argue that he is right to see that politics has to be based on the way people really behave and not on how we might like them to be. Since the essential prerequisite for a political life is stability, Machiavelli correctly insists that the prince must be prepared to make sure his power is secure at all costs—and for that he has to be willing to use the full range of options without moral restraint. Only that will guarantee the security of the state upon which everything else depends.

A third group sees Machiavelli's political vision as a satire, a work ridiculing those very things for which defenders of Machiavelli as a serious political thinker applaud him. There's no time to review this position here; those interested in seeing why one could look at the book in this light might like to read another lecture of mine available through this link—Machiavelli.

THOMAS HOBBS

The first and most important response to the deficiencies of the Old Order was the work of Thomas Hobbes in the second half of the seventeenth century, immediately following the Thirty Years' War and the English Civil War. Though by no means accepted immediately, Hobbes' radical new vision (in his book *The Leviathan*) established the theoretical foundations of modern liberal states, including our own (which owes more to his vision of politics than to the views of any other thinker).

Like Machiavelli, Hobbes begins with the recognition that virtue is an insufficient basis for justice in the modern state. He admires virtue but acknowledges that there's not enough of it around, because human beings by nature are greedy, fearful, jealous, and quarrelsome creatures. The only way they can live peacefully together is if they agree to submit themselves completely to a sovereign power which will have the authority to make laws and enforce them equally on all the citizens. Hobbes doesn't define a

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particular version of the sovereign—he prefers monarchy, but what he has to offer works equally well with an assembly of delegates, like a parliament, or any other form of governing authority on which people can agree.

Hobbes thus proposes a radically new model of the state: a single all-powerful sovereign and a general population all equally obligated to obey the sovereign's written laws, which are the only recognized authority people have to acknowledge. Old traditions, inherited customs, traditional religious attitudes, long-standing personal relationships, old systems of rank and privilege—none of these matters unless the sovereign's law makes them matter. Our only obligation as citizens is to the sovereign's law. In an all-important sentence, Hobbes lays down one of most important liberal principles: What is not forbidden by the sovereign's law is allowed (more about this in a minute).

Hobbes justifies this arrangement with a very interesting argument, too complex to describe in detail here. But let me offer a few highlights. Essentially, he invites us into a thought experiment designed to show us that his model is the reasonable thing to agree with (given what human beings are like) and that it's in our self-interest to follow his recommendations. We should obey the state, Hobbes argues, not because it's established by God (it clearly is not), but because it serves our self-interest to do so.

Hobbes begins by picturing what human beings are like without political organizations—in what he calls a state of nature. Here everyone is perfectly free—there are no laws and no morality (since for Hobbes morality is ineffective without laws and a sword to back them up)—and each person has the right to grab and keep whatever he can for as long as he can. This leads, in Hobbes' most quoted phrase, to a life that is “nasty, brutish, and short,” a condition which sooner or later persuades people that they should submit to a common authority so that they can get some peace and quiet to enjoy their lives free of a constant fear of death. In effect, a group of free individuals agrees to submit to the unconditional authority of some outside party (a king or sovereign assembly) who will protect them from each other. It's important to note that in Hobbes' theory, the sovereign is not a party to the contract (which exists among those governed). Hence, there are no strings attached to its power.

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From this notion of an agreement comes the idea of a social contract—a legal arrangement among the governed to submit equally to a common authority (everyone surrenders all of his or her power to the outside party of the sovereign). It's almost impossible to overestimate the importance of this concept in modern politics, for it introduces a number of ideas that are absolutely fundamental to our modern political arguments. The first is that the individual has an identity and certain rights independent of the state. He may trade these rights for the security a state offers, but there are some he can never forfeit (if the state, for example, fails to provide such security or seeks to take his life, the contract is void and the obligation to obey the sovereign disappears). Such a view of individual rights is completely foreign to the Old Order, where the individual has no existence outside the state (indeed, the state provides the individual with his identity, his most fundamental sense of who he is)—whatever rights he enjoys (if he has any at all) are conferred by the state or by communal traditions, not by his existence as an independent human being—and he certainly has no authority to challenge the state in the name of certain rights he enjoys just because he's a human being.

The second vital principle this idea of the social contract puts on the table is the enormously important modern notion that the state exists by the consent of the governed—indeed, that the very legitimacy of the state requires such consent (hence, we tend to see a state as illegitimate if there's no evidence of consent). Hobbes is not arguing that such a social contract is necessarily a historical event. He's arguing that if you think about political issues, your reason will persuade you that such a concept is the rational way to proceed—we should accept the legitimacy of the state he is proposing because it's rational to suppose that, if we were in a state of nature, we would want to come out of it on the terms Hobbes is outlining.

A third important concept here is the sense of equality under the law—all citizens, as equal partners to the contract, are equally bound to obey the sovereign. There is not one law for the rich or the righteous and another law for the poor or the profane. Inherited rank, one's family connections, or one's economic power confers no special privileges, no release from one's obligation to obey, just like everyone else.

And, most importantly, Hobbes' system permits and promotes a new kind of freedom. Because in the Hobbesian state our only

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duty is to obey the law, we have freedom to do whatever the law does not forbid. Hence, where the law is silent, we acquire the freedom to do what we like, without the restrictions of public opinion or competing religious or community traditions. Such personal freedom is different from the traditional notions of freedom as the liberty of a state to govern itself. Under the Old Order a state might well be free in the latter sense (i.e., free to govern itself), yet grant its citizens very little personal liberty—in fact, given the importance of public opinion and uncontested religious traditions in small communities, for the most part there was relatively little personal freedom for anyone, rich or poor, simply because their behaviour was always closely regulated by social forces and moral codes operating all the time around them, even in their own lives at home.

Hobbes believes that this new liberty, what has come to be called Negative Liberty, will enable people to concentrate on what they really want to do, which is to make money and to construct their own secure middle-class lives in isolation from and competition with each other. If the state gives them a chance to channel their natural greed and competitiveness into profitable activity, they will be peaceful and law-abiding, and the wealth they generate will keep the state strong. We don't have to try to make people good or happy—we simply have to keep them from killing each other over religious questions and let them follow their desires as competitive and acquisitive individuals to make money for themselves. It's a system tailor-made for the emerging free-market capitalism of the time. In effect, Hobbes' theory is predicated on his assumption that people would rather make money and live comfortably than continue to fight each other over religion.

Hobbes' state thus consists of two worlds: the public sphere in which the sovereign's control is all-powerful and the citizens' duty requires obedience to the law (because that's what they've agreed to) and a private sphere in which the citizen is free of obligation to anyone. This concept of Negative Liberty—personal freedom to do whatever we want in our private space—is at the centre of what we call Liberalism. We can and do argue all the time about how big or small this sphere of personal freedom should be (at the moment we seem to be reducing it in the name of national security), but we all see it as essential to our way of life and, in fact, devote a great deal of our lives to creating and protecting a private space for ourselves, where we can live without having to deal with annoying things like other people or the government. Most of you, for example, place a very high value on having your

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own private space and are looking forward to constructing your own private life where you do not have to answer to any outside authority. This notion, which we take for granted, is a modern idea, born in Hobbes' model of the state.

Another vital new principle Hobbes' liberal vision introduces is the legal nature of political obligations. Whereas, in the Old Order political power and obedience were closely linked to particular people, families, and inherited relationships and old traditions, in Hobbes' vision, power and obedience are linked only to the legally established office rather than the person. We obey the Nanaimo City Council's rules not because of the people who sit around the Council table or because of old traditions, but because of the positions they occupy, which are established and backed up and can be changed by the authority of the Sovereign. Once Gary Korpan ceases to be mayor of Nanaimo, he loses all his public authority, which rests with the position, not with the person. Political authority thus is stripped of its traditional dynastic basis: I have no obligation to obey anyone just because of who he or she might be, since my legal obligations extend only to positions of authority established and backed up by the sovereign's power, not to the people who occupy them.

I've spent some time on Hobbes because he, in effect, sets down the blueprint for modern liberal political thinking, and, even if he was frequently vilified for his hostility to traditions and religion, the thinkers who come after him are very much responding, in various ways, to what he proposed.

JOHN LOCKE

John Locke, for example, writing about half a century after Hobbes, adopts his vision of the liberal state in all its most important basic principles. He does, however, make some important and influential adjustments by ameliorating Hobbes' very reductive vision of human nature and by seeking to deal with what many perceived as the most dangerous feature of Hobbes' vision of the political state: the excessive power in the hands of the sovereign. Where Hobbes is seeking, at all costs, to limit the ability of citizens to fight each other (especially over religious questions), Locke is more concerned to protect citizens against the tyranny of the government (the difference may reflect the different political climates—by Locke's time, the fear of and experience with civil wars in the name of religion had faded considerably).

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Hence, for Locke, when individuals living in a state of nature enter into a social contract to form society, they do not surrender all their rights and submit themselves unconditionally to the law of the sovereign. They retain certain key entitlements (rights) which act as permanent limits to the control the government can exert over them. Thus, there is still a contract and the consent of the governed and the rule of law, but the contract is more complicated. Negative liberty, with Locke, has some built-in guarantees, and these guarantees are enshrined in the document which establishes the social contract, namely, the constitution.

The most famous examples of what Locke is proposing are the documents his ideas did so much to shape: the Declaration of Independence and the American Constitution. The latter document enables a citizen to do something which in Hobbes' state is not possible (except when the state comes for one's life)—to challenge the government's authority to enact and enforce a particular law and thus to limit that citizen's ability to do as she likes (like carrying guns, or expressing her opinions, or organizing a meeting of fellow citizens, or worshipping at a church of her choice, and so on). And, as we witness all the time, it gives the law courts the enormously important task of sorting out just what certain constitutional rights mean in relation to particular pieces of legislation. In a state where citizens have constitutional rights, their private space is protected against government interference much more clearly than in a state where such rights do not exist. In this connection, it's interesting to note that the United Kingdom, the original home of liberal theory, has no constitution—it follows Hobbes' idea that total authority rests with the sovereign—hence there is no judicial appeal against the laws passed by parliament, as there is in the United States and now in Canada.

Before leaving these two enormously important liberal thinkers, it's important to make one further point. Neither of them is particularly interested in whether the citizens are happy in their personal lives in a political system that encourages personal freedom and competition at the expense of communal traditions (the "pursuit of happiness" is a wonderfully ambiguous phrase). Nor are they concerned with the moral quality of citizens' lives. What matters is obedience to the law, not adherence to any particular moral code or, indeed, any moral code at all. Finally, neither of them is particularly concerned with equality—other than the important idea of equality under the law. The Liberalism

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of Hobbes and Locke is designed to promote individual economic activity in a spirit of competition, within the boundaries established by laws binding on everyone, an arrangement that virtually guarantees that some citizens will be very much richer than others and will be free to spend their money as they see fit and that some citizens will fail in their economic activities.

JEAN-JACQUES ROUSSEAU

The most powerful, passionate, and paradoxical response to Hobbes came about one hundred years after he published his massive masterpiece, when Jean Jacques Rousseau, a citizen of Geneva in Switzerland, wrote his political discourses—especially the *Second Discourse (On Inequality)* and his *Third Discourse (The Social Contract)*. In these works, Rousseau lays the initial groundwork for the West's most historically important alternative to the liberal model defined by Hobbes and Locke.

Rousseau begins by adopting Hobbes' basic metaphor: human beings originally existed in a state of nature; this ended with a social contract which established civil society. But he drastically alters the emphasis. For Rousseau, man in a state of nature was perfectly happy, independent, free, and self-sufficient (a "noble savage"). The social contract was a disaster because, in setting up society, human beings inevitably introduced inequality—some people ended up with more property or more esteem than others, and this brought about all human unhappiness and oppression, which arise, most importantly, not merely from material differences but also from psychological states. Inequality makes people feel unhappy, because they cannot help comparing themselves with others who have more goods, more talent, or more honours. And psychological distress of this kind is, for Rousseau, a form of oppression.

Rousseau has three major objections to what Hobbes and Locke are proposing. First, Rousseau argues that in such a modern liberal state, human beings will end up trading the complete freedom they enjoyed in a state of nature for a small and insufficient fraction of freedom given by the state (How can human beings be truly free when they have to obey the sovereign?). Second, as mentioned above, he sees in the inequality produced by liberal competition a source of material and psychological oppression (something Hobbes and Locke do not concern themselves with). Rousseau is particularly sensitive to how people who have a certain political freedom can become

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economic slaves to the marketplace and psychological slaves to the images of the materially good life. And third, he objects strongly to the reductive view of human beings basic to Hobbes' theory. If human life is to be worth anything, Rousseau argues, a person has to have a moral worth as an independent individual capable of making rational decisions about his own life for moral reasons, rather than operating merely as an economic agent whose only duty is to obey the sovereign's law without question.

Rousseau realizes that there's no going back to a State of Nature, no matter how utopian that existence may have been. Human beings now have to live in society, among other human beings. So the challenge to the political theorist is to find a way to organize a state in which human beings are as free as they were in a state of nature (or feel no loss of freedom by existing in society) and in which they feel that they are fully equal, without any psychologically crippling sense that they are better or worse than anyone else in any way. And finally, the political arrangements should encourage the full moral development of the individual citizen as a self-governing, independent, rational moral being. What he's demanding, of course, is a very tall order—a utopian arrangement in which the individual lives in civil society without losing any sense of independence and freedom and without any feelings of psychological inadequacy or inferiority.

His answer is complex, and I have time here (again) to provide only a very rough preliminary sketch of his argument (in *The Social Contract*). To begin with, Rousseau rejects any form of government other than a majoritarian democracy in which all citizens participate equally at all times in the decision-making (hence the state must be relatively small). If the citizens are educated enough to see the reasonableness of this arrangement (a very important condition), they will come to understand that in following the decisions of the majority of all the citizens (as these decisions emerge from an assembly of all citizens) they will be following the General Will of the state, which will always be right (provided, as mentioned, the citizens have all been educated in the appropriate way). A person who disagrees with the General Will in any particular decision will understand that the mistake belongs to her and not the community. Such a communitarian arrangement, Rousseau argues, must be extremely careful not to create a complex bureaucracy of government, which will inevitably arrogate power to itself and sabotage the legitimacy of the state, which rests on the fact that all its members are equally important in decision making. Rousseau argues that an

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arrangement like this would enable people to obey the state without any sense of a loss of freedom, because they would be following what their reason told them was the right thing to do, and self-imposed rules do not register as a loss of freedom. In effect, they would be obeying themselves (“You should obey the state because you are the state”).

In addition, Rousseau stresses the need for the citizens to engage in trades which will, as much as possible, make them self-sufficient and which will not require very much social interaction, dependence on others, or economic competition (one way of dealing with the psychological distress caused by comparing people with oneself is to interact with others as little as possible). In this way, the citizen will remain independent and will retain full control over his own life. An educated awareness of the dangers of certain cultural productions (plays, books, music) will inhibit the development of images of life which threaten the citizen’s satisfaction with what he has at present and which make him want what he cannot have. Under such conditions, he will be reasonable enough to understand that he should limit his material wants and resist the lure of the capitalist market place, which will always be seeking to persuade him to acquire unnecessary goods, the possession of which will set him apart from his fellow citizens and promote feelings of inequality and dissatisfaction.

It’s important to notice a couple of things about Rousseau’s proposal. First, he’s emphatic about how important it is that people have to be educated into understanding an arrangement like this. Where Hobbes and Locke settle for people as they are, warts and all, and seek to channel their natural vices into useful economic activity, Rousseau wants people to be better than they typically are, to develop more fully as happy, independent, free, rational moralists, and they will have to be educated to do that if his system is to work. But Rousseau is not claiming that this can happen with people as they are now, except perhaps under very unusual circumstances in very specific places (e.g., in Corsica). Second, Rousseau is extremely pessimistic about a state like the one he’s proposing ever being successfully implemented or, if it is, lasting very long. So he has very little to offer by way of a practical program of action to achieve such a political ideal.

The best examples of some of the main features of what Rousseau is proposing are offered by certain forms of communal living (the Israeli kibbutz, for example), where a relatively small community governs itself with the equal participation of all and

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where there is much less emphasis on competitive economic activity to promote the accumulation of personal goods to decorate a private space. There are many tributes to the psychological and economic benefits of such an arrangement (and no shortage of volunteers who prefer these arrangements to normal liberal society). It may well be the case that many of us would be much happier and more productive in such a state than in what we have available around us. It is, however, difficult to find successful large-scale examples of such communitarian political structures.

Rousseau's vision has been immensely influential, especially among those who don't like the spirit of economic competition at the heart of traditional liberalism and who think that a political system has some responsibility for the personal happiness and the moral stature of its citizens—and, most importantly, among those who believe that there is an important priority that liberalism not only ignores but subverts, namely equality.

For it's clear that in the competitive climate promoted by Hobbesian liberalism, there will be a lot of economic losers (as in any competition). What obligation does the state have to those people? Well, according to the models proposed by Hobbes and Locke, not very much. If people squander their opportunities, that's their problem. If they are unhappy about the fact that some people are much better off and can afford many more things, well, tough luck. They had their chances, just like everyone else, and if they don't make it, well, that means they haven't got it.

For all its reservations, Rousseau's writing offers those who object to such a Liberal view an alluring vision of a society in which people have been re-educated into a new way of dealing with each other in a spirit of equal and free communal cooperation in a political system stressing equality. For that reason Rousseau is often accused, fairly or unfairly, of being the godfather of all sorts of tyrannical experiments which seek to re-educate citizens by force into some new communal utopia (in Camille Paglia's characteristically pumped-up prose, "All roads from Rousseau lead to totalitarianism").

[Parenthetically, it's interesting to note that Canadians have always valued equality much more than Americans have, especially in our educational, medical, and welfare systems—thanks largely to the influence in Canada of socialist political parties, some of whom derive their original inspiration from Rousseau. That priority is

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under considerable attack at the moment, of course, as there is increasing pressure to hand these systems, or significant parts of them, over to the marketplace, to free trade. It will be interesting to see just how far we are prepared to go to protect this tradition—which, of course, imposes important limitations on some people's freedom.]

KARL MARX

But the most penetrating, influential, and long-lasting challenge to the liberal tradition established by Hobbes and Locke (and energetically defended by John Stuart Mill) came in the mid-nineteenth century from Karl Marx, who directed his formidable intellectual powers into a thoroughgoing critique of liberal capitalism as it had developed on the basis of the political models advocated by those earlier thinkers.

Marx admired many things about liberal capitalism, especially its ability to generate fabulous wealth and to sweep ancient traditions out of the way. But Marx was genuinely horrified by the staggering inequalities created by that system. When he looked around him, he saw increasing numbers of people who, in theory, enjoyed so-called liberal freedoms (their constitutional right to free speech and so on) but who were, in fact, abject slaves to an economic system which barely enabled them to survive. Was this really freedom? What use were the celebrated liberal freedoms if a majority of the citizens, including children, had no economic freedom and were forced into a short and brutal life of exploitation to make the fabulously rich factory owners even richer?

This response led Marx to a long and detailed study of capitalism. Again, this is a complex topic, but Marx makes a very strong case that free-market capitalism is, over time, an extremely destructive enterprise, because the conditions for free competition inevitably make fewer and fewer people richer and richer and leave more and more people out of work or living desperately near subsistence level. Over time, Marx argues that these conditions will encourage in those at the bottom a collective awareness of their common plight (in his words, they will develop a “class consciousness”) and, with a new understanding of the reasons for their distress, they will revolt against their capitalist owners, take over the means of production, and distribute the enormous wealth generated by the productive forces of capitalism more justly. Hence, the inherent problems of capitalism will lead to a

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new political structure, Communism, in which everyone owns the means of production and benefits equally from the wealth generated. People will be free of economic wants and will thus be able to take charge of their lives in a spirit of free cooperation, without the need for one citizen to oppress another. They will obey the state because, once again, they are the state. Politics will then cease to be a complicated affair, because all citizens will happily give what they can and take what they need (a communal utopian ideal).

This process, according to Marx, is historically inevitable, but it requires (as in Rousseau) the development of a new understanding in people about the nature of society and their own role within it. Communism cannot be imposed arbitrarily; it will emerge inevitably as the desperate conditions inevitably created by liberal capitalism force more and more people to understand the nature of the problem and the obvious need to find and answer to it through cooperative political efforts.

Liberal Capitalism, Marx argues, will take steps to slow this process down (by consolidating, automation, going off-shore, marketing new products, and so on), but this will simply postpone the moment when the increasing numbers of its victims rise in rebellion and the new communal spirit begins to emerge, fuelled by a demand for economic justice.

Marx's analysis of liberal capitalism is extraordinarily acute. He may very well have been wrong about the timeline, and he almost certainly underestimated capitalism's ability to adjust in order to defuse the revolutionary potential of those injured by the system, but his analysis about the inevitably dislocating and self-destructive effects of free-market capitalism is still a very prescient way of understanding just the sort of social disruptions we are so depressingly familiar with (mill closures, company takeovers with massive layoffs, corporate scandals on the stock market, jobs moving overseas, automation, boom-and-bust economic cycles, increasing concentration of social and economic power in fewer and fewer hands, so on).

Marx provides both theoretical coherence and a practical program of action for those who wish to offer some political alternative to the liberal models of Hobbes and Locke. Under that influence, most Western countries have developed a strong and influential socialist tradition, whose major aim is to pressure society to recognize the importance of equality in the face of the growing

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gap between rich and poor, which Marx sees as the inevitable result of traditional liberalism. And this influence has led most capitalist countries to modify the doctrines of free-market capitalism significantly by introducing important measures to ameliorate the inequalities of free competition—many of them expressly recommended by Marx: free public education, unions, federal control of banking and transportation, welfare assistance, income tax, and so on. It's clear that such measures have been adopted not because liberal capitalists thought they were good in themselves (they are all limitations on personal freedom) but rather because they were necessary to defuse the revolutionary potential in the working classes. And in certain areas, especially environmental issues, increasing numbers of people have become aware of the importance of more cooperation at the expense of liberty (e.g., closing the cod fishery, imposing environmental standards for industry, banning whaling, restricting oil drilling, and so on).

With the fall of the Soviet Union, many people are tempted to write Communism off as a viable political system (overlooking the fact that the Soviet Union was hardly based on genuine Marxist principles). Whatever the truth of that claim or not, Marx's analysis of liberal capitalism, especially his insistence on the necessarily dislocating effects of the inequalities associated with that system, are still very hard to answer. He may have misjudged the march of history and the extent to which human beings are capable of developing class consciousness in the way he describes (in that sense he may have been wrong about the viability of Communism as a political system), but capitalism still has to find an entirely satisfactory answer to his analysis of its built-in deficiencies.

A FINAL COMMENT

For all their significant differences, the thinkers very quickly reviewed above had one thing in common: they believed that modern political thinking must be based on reason, on a rational analysis of human nature and of the conditions necessary for freedom and justice, in states maintained by the consent of the governed. Hence, they would almost all share a certain despair and wonder at the extent to which modern politics has in some places been dominated by irrationality, by, for example, the success of charismatic tyrants who justify their activities by the cult of personality or by racial-ethnic-nationalistic metaphors or

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by a return to theocracy, the rule of the clerisy in the name of a traditional religion (like Islamic fundamentalism).

Dealing with such states creates real problems for Liberals and Communists alike, because they rest on principles foreign to the entire modern Western tradition and hence are often frustratingly incomprehensible to Westerners (who, for example, can have great trouble recognizing the genuine popularity of charismatic, brutal tyrants or oppressive religious ruling councils). It's very hard for us to accept that some people may not want democracy, do not place a particularly high value on personal liberty to do as they wish, and are not concerned about the consent of the governed or citizens' rights in the way that our models of the state require.

In the West, the Hobbes-Locke formulation of liberal political order is very much alive and in the ascendant, as the hard-won adjustments to that brought about by a socialism inspired by Marx are, bit by bit, being shredded by the need to keep capitalism dynamic (e.g., the erosion of the power of the unions, the move to privatize medical services, the retreat of government from various public services, the rising costs of post-secondary education, and so on) and by the growing power of giant corporations. At the same time, however, the threats posed by terrorism are leading many Western governments to introduce significant limitations on personal liberty in the name of national security.

It's also clear that the political and economic success of Western liberalism is helping to increase the already alarming gap between rich and poor throughout the world, in precisely the way Marx predicted. There is no shortage of dire warnings about the urgent need to address this issue with something more than World Trade Organization meetings and World Bank loans. But any intelligent and effective steps for more global justice may well require a significant re-evaluation of the very principles on which the success of that liberalism depends. That's a matter for another time.